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Case Number: 25NNCV06404 Hearing Date: August 7, 2026 Dept: A

TENTATIVE RULING

AUGUST 7, 2026

DEMURRER; MOTION TO STRIKE

Los

Angeles Superior Court Case # 25NNCV06404

MP: Plaintiff

YKT Street Properties, LLC

RP: Defendant

Yihuan Wu

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

YKT Street

Properties, LLC ("Plaintiff") owns real property located at 316 E. Magna Vista Avenue in Arcadia ("Plaintiff's Property").

Yihuan Wu ("Defendant") owns the westerly neighboring property located at 310 E. Magna Vista Avenue ("Defendant's Property"). There is a concrete masonry unit wall ("CMU Wall") functioning as a shared boundary fence between the two properties. Plaintiff alleges that in May 2025, Defendant claimed that the CMU Wall encroached on Defendant's Property by ten inches and began leaving notes and harassing Plaintiff's tenant. During this time, Defendant had begun work on a water diversion system and attempted to access Plaintiff's Property to continue that work. Plaintiff alleges that Defendant's water diversion system was not constructed prior to Plaintiff's ownership in 2017 but rather around 2023 and that it was unlawfully encroaching on Plaintiff's Property.

Plaintiff alleges that Defendant's water diversion system creates an ongoing risk to Plaintiff's Property, including redirected water that has caused/continues to cause excessive water intrusion, soil erosion, pooling/standing water, damage to landscape, and deterioration of Plaintiff's Property's structural elements.

The Complaint, filed

September 11, 2025, alleges: (1) Private Nuisance; (2) Intentional Trespass; (3) Quiet Title; and (4) Declaratory Relief.

B.

Operative Cross-Complaint

On March 17,

2026, Defendant filed an Amended Cross-Complaint ("FAXC") against Plaintiff for: (1) Defamation/Filing a False Report; (2) Coercion; (3) Harassment; and (4) Mental/Emotional Damages.

MOTIONS ON CALENDAR:

On April 20, 2026, Plaintiff

filed a Demurrer and Motion to Strike Defendant's FAXC. On May 28, 2026, Defendant (a self-represented litigant) filed opposition. On July 31, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A.

Demurrer

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank, supra*, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal. 4th 1074, 1082.)

B. Motion to Strike

Motions to

strike are used to reach defects or objections to pleadings that are not

challengeable by demurrer, such as words, phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper procedure to attack false allegations in a pleading is a motion to strike. (C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435, “[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (C.C.P. § 436(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (C.C.P. § 436(b).)

MEET AND
CONFER:

C.C.P. §§
430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Chou Demurrer Decl., ¶¶2-5, Ex. A; Chou MTS Decl., ¶¶2-4, Ex. A.)

ANALYSIS RE DEMURRER:

Plaintiff demurs to
the First, Second, Third, and Fourth Causes of Action in Defendant's FAXC.

A.
First Cause of Action
for Defamation/Filing a False
Report – Sustained with Leave to Amend

The elements of
defamation are: (1) publication that is (2) false, (3) defamatory, (4)
unprivileged, and (5) has a natural tendency to injure or cause special
damage. (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1369.)

In the First

Cause of Action, Defendant alleges that Defendant never met Plaintiff who was the landlord. (FAXC, ¶16.) Defendant alleges she only intended to construct the water division system within the property line of the CMU wall and attempted to contact Plaintiff's tenant in a calm manner instead of threats as claimed by Plaintiff. (Id., ¶¶17-18.) Defendant alleges she never entered beyond the front porch of Plaintiff's Property while delivering notes and that the water division system does not exceed nor show proof of water leakage. (Id., ¶¶19-20.) Defendant alleges that she left the water division system unfinished after the unresolved title of the property line. (Id., ¶¶21.) Defendant contends Plaintiff and its tenant failed to act and comply with the necessary requirements for Defendant to resolve the measurement of the property lines. (Id., ¶22.)

The allegations

fail to allege the elements of a defamation claim. Defendant has not alleged what statement Plaintiff made/wrote, whether the publication was false and defamatory, and whether it had a natural tendency to injure or cause Defendant damages. In opposition, Defendant argues that Plaintiff published false, damaging statements about Defendant's property use to neighborhood residents, tenants, and third parties to impair her reputation in the community. (Opp. at p.6.) However, these allegations were not alleged in the FAXC and thus constitute extrinsic facts/arguments that cannot be considered to determine the sufficiency of the cross-complaint.

As the defamation

elements have not been alleged in the FAXC, the demurrer to the First Cause of Action is sustained with leave to amend.

B.

Second Cause of Action

for Coercion – Sustained with

Leave to Amend

"[A] threat to take legal action is not

unlawful unless the party making the threat knows the falsity of his claim." (Odorizzi v. Bloomfield

School Dist. (1966) 246 Cal.App.2d 123, 128.) "[I]t does not constitute duress or coercion

to threaten to do that which a party has a legal right to do." (Marshall v. Packard-Bell Co. (1951) 106 Cal.App.2d 770, 774.)

In the Second Cause

of Action, Defendant alleges that from February 27 to March 3, 2026, during her trip, Defendant's daughter received multiple copies of the demurrer and motion to strike the answer. (FAXC, ¶¶23-24.) She alleges that Plaintiff's counsel used a forceful and aggressive tone to rush Defendant's response on the same day she was returning to the United States. (Id., ¶25.)

Plaintiff argues that

this cause of action is uncertain and that there is no standalone cause of action for "coercion." The Court agrees that Defendant's allegations do not amount to a cause of action as currently stated and that the allegations are therefore uncertain. (The Court notes that Plaintiff's demurrer also addresses duress and the Tom Bane Civil Rights Act under Civil Code, § 52.1, but as the nature of this cause of action is uncertain, such arguments need not be considered at this time.)

The demurer to the

Second Cause of Action is sustained with leave to amend. However, upon amendment, Defendant should consider whether she has sufficient supporting facts to allege coercion or a related type of claim.

C.

Third Cause of Action

for Harassment – Sustained with
Leave to Amend

In the Third Cause of

Action, Defendant alleges that she asked Plaintiff's counsel to stop the repeated harassment via duplicated demurrers/motions to strike through email, but Plaintiff's counsel only responded with two more copies of the former, proving Plaintiff's actions of harassment via attorney and disrespecting Defendant's request to leave her alone to recover. (FAXC, ¶27.)

C.C.P. § 527.6(a)(1)

states that a person who has suffered harassment may seek a temporary restraining order and an order after hearing prohibiting harassment. "Harassment" is defined as "unlawful violence, a credible threat of violence, or a knowing and willful course of conduct directed at a specific person that seriously alarms, annoys, or

harasses the person, and that serves no legitimate purpose. The course of conduct must be that which would cause a reasonable person to suffer substantial emotional distress, and must actually cause substantial emotional distress to the petitioner.” (C.C.P. § 527.6(b)(3).)

Defendant has not alleged a viable claim for harassment against Plaintiff and/or her counsel (who is not a party to this action). At best, Defendant alleges that Plaintiff/Plaintiff’s counsel caused pleadings to be served on Defendant, which is a routine procedure in a litigation. Defendant has not alleged unlawful violence, a credible threat of violence, or a course of conduct that seriously alarms, annoys, or harasses a person and that serves no legitimate purpose.

Thus, the demurrer to the Third Cause of Action is sustained with leave to amend.

D.

Fourth Cause of
Action for Mental/Emotional Damage
– Sustained with Leave to Amend

The elements of intentional infliction of emotional distress are: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff suffered severe or extreme emotional distress; and (4) the plaintiff’s injuries were actually and proximately caused by the defendant’s outrageous conduct. (Vasquez v. Franklin Mgmt. Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.) In order to avoid a demurrer, the plaintiff must allege with great specificity, the acts which she believes are so extreme as to exceed all bounds of behavior usually tolerated in a civilized community. (Id.)

Outrageous conduct must be so extreme as to exceed all bounds of behavior usually tolerated in a civilized community. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) In addition, the outrageous conduct must be of a nature which is especially calculated to cause, and does cause, mental distress of a very serious kind. (Id.)
“Although emotional distress may consist of

any highly unpleasant mental reaction such as fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment or worry [citation], to make out a claim, the plaintiff must prove that emotional distress was severe and not trivial or transient.” (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1376.) Such distress must be “of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1004.)

In the Fourth Cause of Action, Defendant alleges that Plaintiff’s actions have negatively affected Defendant and her family (especially her daughter), and caused them to suffer anxiety, stress, and paranoia, and to experience loss of sleep and focus. (FAXC, ¶¶28-30.) She alleges she experienced depression and anxiety, requiring anti-depressants, and her daughter has suffered insomnia and anxiety, requiring therapy and prescriptions. (Id., ¶¶31-32.)

There is no cause of action for mental/emotional damage.

However, to the extent Defendant is alleging an IIED claim, Defendant has not alleged sufficient facts regarding what conduct Plaintiff engaged in that would be considered extreme and outrageous that exceeds the bounds of behavior usually tolerated in a civilized community. As this element has not been alleged, Defendant has not alleged sufficient facts supporting an IIED cause of action. The demurrer to the Fourth Cause of Action is sustained with leave to amend.

ANALYSIS RE MOTION TO STRIKE:

Plaintiff moves to strike the FAXC in its entirety, each cause of action, the requests for judicial declarations, and the request for punitive damages and \$1,000,000 in damages.

In light of the ruling on the demurrer, the motion to strike is taken off-calendar as moot.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff YKT Street Properties, LLC's Demurrer and Motion to Strike came on regularly for hearing on August 7, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The
DEMURRER TO THE FIRST AMENDED
CROSS-COMPLAINT is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

THE MOTION
TO STRIKE THE FIRST AMENDED CROSS-COMPLAINT IS TAKEN OFF-CALENDAR AS MOOT.

case
management conference is continued to december 9, 2026 at 9:00 am.

PLAINTIFF TO PROVIDE NOTICE.

IT IS SO ORDERED.